

Chapter 9 — Operational, Security, Privacy, Incident, and Emergency Governance

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1. Purpose

Define institutional oversight while deferring execution details to Books V and VI.

2. Scope

This chapter governs break-glass, cross-domain incidents, data decisions, emergencies, incidents, material incidents, operations and incidents. It defines institutional procedure and does not create constitutional, technical, operational, or security authority.

3. Authority and source requirements

Book I Decisions 35, 38-43, 47-51; Books II-IV; Book V operational authority; Book VI security, privacy, and trust authority. Book I prevails. Final Books V and VI retain their operational and security/privacy/trust execution authorities; Book VII supplies institutional governance only.

4. Definitions and roles

Primary accountable roles: Governance Chair, Emergency Authority, Constitutional Steward, Security Authority, Incident Commander, Privacy Authority, Treaty Steward, Governance Auditor. Authority means explicit bounded permission to decide; expertise and administrative access do not create it.

5. Normative controls

OPS-09-001 — Preserve operational command

Governance **MUST** define policy and accountability without usurping the incident commander, recovery coordinator, security responder, or operator acting within authorized Book V/VI scope.

- Applicability: operations and incidents
- Responsible role: Governance Chair
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Authority Boundary Review
- Severity: Critical
- Exception authority: none

OPS-09-002 — Classify emergencies

Emergency authority **MUST** require a declared event, bounded objective, authorized role, least necessary power, evidence, start/expiry, termination, and retrospective review.

- Applicability: emergencies
- Responsible role: Emergency Authority
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Emergency Declaration
- Severity: Critical

- Exception authority: none

OPS-09-003 — Forbid emergency constitutional change

Urgency MUST NOT authorize constitutional amendment, permanent authority expansion, new capability-class activation, Treaty approval, or waiver of invariants outside the required process.

- Applicability: emergencies
- Responsible role: Constitutional Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Emergency Boundary Check
- Severity: Critical
- Exception authority: none

OPS-09-004 — Use break-glass controls

Break-glass access MUST be identity-bound, purpose-limited, least-privilege, time-limited, dual-controlled where feasible, monitored, automatically revoked, and retrospectively reviewed.

- Applicability: break-glass
- Responsible role: Security Authority
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Break-Glass Record
- Severity: Critical
- Exception authority: Security Authority

OPS-09-005 — Protect incident evidence

Incident action MUST preserve evidence, privacy, chain of custody, legal holds, affected-party rights, and independent review while limiting disclosure to need.

- Applicability: incidents
- Responsible role: Incident Commander
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Incident Evidence Manifest
- Severity: Critical
- Exception authority: none

OPS-09-006 — Govern privacy impact

Governance decisions affecting personal or sensitive data MUST identify purpose, authority, minimization, inference, disclosure, retention, deletion, people affected, and remedy.

- Applicability: data decisions
- Responsible role: Privacy Authority
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Privacy Decision Record

- Severity: Critical
- Exception authority: Privacy Authority

OPS-09-007 — Coordinate cross-domain incidents

External-domain incidents MUST use Treaty and Firewall authority, preserve sovereignty, restrict exchange, notify authorized parties, and record suspension/revocation decisions.

- Applicability: cross-domain incidents
- Responsible role: Treaty Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Cross-Domain Incident Record
- Severity: Critical
- Exception authority: Owner where Treaty scope changes

OPS-09-008 — Require retrospective review

Every material incident or emergency exercise of exceptional authority MUST receive independent, blame-aware review of decisions, evidence, harms, recovery, authority, controls, and corrective action.

- Applicability: material incidents
- Responsible role: Governance Auditor
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Post-Incident Governance Review
- Severity: High
- Exception authority: Governance Chair

6. Required procedure

The proposer MUST submit the classified proposal and evidence. The recorder MUST verify authority and conflicts. Required independent reviewers MUST issue findings. The controlling authority MUST decide exact scope and conditions. The recorder MUST publish authoritative status, retain evidence, schedule review and sunset, propagate effects, and preserve appeal rights.

7. Prohibited practices

Off-record decisions, authority inference, self-approval, hidden conflicts, silent precedent, selective evidence, indefinite emergency power, permanent exceptions, and retroactive record alteration are prohibited.

8. Evidence, publication, and retention

The package MUST preserve proposal, sources, authority, conflicts, evidence, alternatives, affected parties, deliberation, dissent, decision, conditions, effective state, propagation, review, sunset, appeal, supersession, classification, access, and retention.

9. Exceptions, failure consequences, and appeals

A failed Critical control blocks the decision or suspends its effect. A High failure requires correction or a valid expiring exception. Appeals use Chapter 12. No exception can waive Book I or manufacture Owner authority.

10. Security, privacy, reliability, and continuity

Governance records MUST be integrity-protected, least-privilege, purpose-bound, minimized, available for authorized review, recoverable, and resistant to compromised identities or record systems.

11. Verification and metrics

Verify authority paths, role separation, record completeness, evidence integrity, propagation, expiry, appeal, and source traceability. Measure reversals, calibration, escaped harms, exception age, burden, remedy, and decision latency.

12. Traceability, examples, review, and status

- Source basis: Book I Decisions 35, 38-43, 47-51; Books II-IV; Book V operational authority; Book VI security, privacy, and trust authority.
- Book V reconciliation: `planning/BOOK\_V\_RECONCILIATION\_REGISTER.md`.
- Book VI reconciliation: `planning/BOOK\_VI\_RECONCILIATION\_REGISTER.md`.

Example: a committee recommends a risk response, but the record names the authorized Risk Owner as approver, preserves dissent, sets expiry, and triggers certification impact review.

Anti-pattern: an urgent meeting labels a policy “temporary,” grants indefinite power to its chair, omits conflicts, and treats silence as Owner approval.

Chapter review: PASS. Owner Review items: none created by this chapter. Completion status: CERTIFIED FINAL.